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THE WHITE HOUSE
WASHINGTON

MEMCON

MEMORANDUM OF TELEPHONE CONVERSATION

SUBJECT: The President's Telephone Call to Chancellor
Helmut Kohl of the Federal Republic of
Germany (U)

PARTICIPANTS: The President
Helmut Kohl, Chancellor
Robert Hutchings, NSC Staff (Notetaker)
Gisela Marcuse (Interpreter)

DATE, TIME March 23, 1990, 3:10 - 3:32 p.m. EST
AND PLACE: The Oval Office

The President initiated the call at 3:10 p.m. (U)

The President: Helmut, how are you? (U)

Chancellor Kohl: Fine. Thank you for calling. (U)

The President: I just want to call to let you know how the Mazowiecki visit went. I like the man. I think he is serious and honest -- a man of real integrity. There is no question that he is a Polish patriot in the best sense of the term. (U)

Chancellor Kohl: That is also my view. (U)

The President: The public side of the visit went very well. We had some things to offer on the economic side -- including the signing of a new Business and Economic Agreement -- that took some pressure off the border issue. He conducted himself very well in his public remarks. He made his points on the border and Two Plus Four, but in a very restrained and statesmanlike way. So I'm satisfied that we were able to project U.S. understanding for Polish concerns without in any way signalling that the President of the United States was trying to influence or pressure Chancellor Kohl. So I thought it worked out well publicly and hope you agree. (Ø)

Chancellor Kohl: Yes, I do agree. Thank you very much. That is exactly the impression people have here. Unfortunately, this was a sharp contrast to the impression with Mitterrand. Your position was received very well indeed. I am especially grateful for your having done it that way. (Ø)

The President: Let me say just a word or two about my private meetings. We met the first day in the Oval Office and then I invited him back the second day for thirty or forty minutes. In those, he focused mainly on the border issue. The matter of a

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German-Polish treaty on the border, rather than the Polish role in Two Plus Four, was the issue for him. You know his position. He just reiterated that. He wants a treaty written and initialed before unification and then signed by an all-German government as soon as one exists. (Ø)

I took the positions that I outlined to you in our last conversation, and I explained your position and why you cannot take a position now for an all-German government that does not exist. I did my best to convince him that we have great trust for your word and that he should trust you when you say the current GDR-Polish border should be the permanent German-Polish border. He didn't argue with that. In fact, he expressed high regard for you, but he went on to say that he worried about the position a united Germany would take. That is why he wants assurances -- and wants a treaty -- before unification. (Ø)

I did not raise with him the idea of discreetly negotiating with you a text, but it does seem that I misunderstood you when you said I might raise with Mazowiecki the idea that you and he could, confidentially, work out an "eventual text." I understood you to mean the text of an eventual German-Polish treaty. But in a follow-up call Horst Teltschik made clear to Brent Scowcroft you were referring to the text of the common declaration you propose the two German parliaments to issue. (Ø)

Chancellor Kohl: It is not so big a misunderstanding. Let me explain it slowly, and break in if you have any questions about what I am saying. I will begin at the end, as it were. I agree that an all-German government should sign a treaty on the border and submit it to an all-German parliament for ratification. I think that will be in about two years. He has concerns, and we appreciate them. We have to get rid of them. (Ø)

A treaty will for sure contain one particular sentence. It would read approximately as follows: "The Republic of Poland and the Republic of Germany do not make any border claims on each other, and they consider the existing border to be permanent." My idea was to find some agreement [with Mazowiecki, presumably] on what that should look like. I would take the sentence and put it into the resolution of the German Bundestag. Then a sentence would say: "The Bundestag resolves that it will ask an all-German parliament to come up with a treaty as soon as possible." I would send that resolution on behalf of the Federal Government to Poland, adding a sentence that the Government supports the position taken by the Bundestag. The same thing would be done by the Volkskammer. The Poles would have at that time assurances from both freely elected German parliaments and governments, at the highest level possible. Then no person of decency can have any doubts on what the Germans think. (Ø)

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What he wants would not be binding in international law. It is not in any way more binding than the approach I have taken. It would be less binding, because the parliaments wouldn't be involved. The consequences for me would be that some group would bring a suit before the Federal Constitutional Court accusing me of taking steps even though I wasn't authorized to do so. I would be involved in all kinds of trouble for weeks. I definitely will not do that. (Ø)

So I have been very forthcoming in the approach I have taken. Felipe Gonzalez was just here, and we talked about this. He has no bias either way. He said very impulsively that he doesn't understand the entire debate, because what the Germans are offering is all that is conceivable. (Ø)

The President: Good. So there will be no further missed signals, let me tell you exactly what I told Mazowiecki on this. I asked whether he thought it would be useful if I asked you to consider working out with him the text of a treaty. I didn't say that you had mentioned the idea. And I asked him to keep the idea confidential. This was presented as a George Bush idea with no reference to the idea you and I had said anything about it. (Ø)

Chancellor Kohl: But we could further develop this idea. (Ø)

The President: Exactly. Let me just make two more points. He said that his first reaction was positive but that he wanted to study the idea. That came up in our meeting on Wednesday. But then when we met yesterday -- after we learned from Horst that there might have been a minor misunderstanding -- I didn't return to the subject. Neither did he. It wasn't discussed any more. Frankly, what you've proposed here is something he might recognize as something that's as far as Germany can go. (Ø)

Chancellor Kohl: Yes. I do think it's quite a concession. (Ø)

The President: I think you might find that he is receptive. He didn't seem an unreasonable man. (Ø)

Chancellor Kohl: I just don't understand his words. I don't understand why he didn't just pick up the telephone and call me. I would have told him that I wouldn't sign a treaty earlier. No one will make me. But I do want to help him. If we have two German parliaments and two German governments saying that, it's not reasonable to assume their positions will change in two years. Now there is a new argument, coming from the election results from the GDR on Sunday. In this new Government -- I'm speaking of the GDR Government -- there are people who are close to me personally. But on this idea, I will pursue it. (Ø)

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The President: Good. All in all, the visit went well. I think it served the purpose of reassuring the Poles that they weren't being excluded. I can't say that I changed Mazowiecki's position on the border issue, but he didn't raise the idea of a Two Plus Four meeting in Warsaw at all. (P)

Chancellor Kohl: You have been extremely helpful. I'm extremely grateful. I think we will be able to manage this in a reasonable way. The most difficult thing for him is not the border but the economy. I am very pessimistic about economic developments. (P)

The President: It is discouraging. They need structural help, and we will try to assist in that area. (P)

Chancellor Kohl: But the thing is they have to help themselves. There are legitimate concerns about that. (P)

The President: Well, my bottom line is this: he struck me as quite sincere in wanting a reconciliation between the Poles and the Germans. This, along with the confidence he expressed in you, is something to build on. If I can be helpful on any point, just let me know. (P)

Chancellor Kohl: He deserves any help he can get. What I can do, I shall do. His problems are immense, and that is why I want to help him. (P)

The President: I will be in touch. We have more work to do.
(U)

-- End of Conversation --

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